716; *Crowther* v. *Appleby*, L. R. 9 C. P. 27; *Nelson* v. *United States*, 201 U. S. 92, 115; Wigmore on Evidence, § 2200; *United States* v. *Ralston*, 17 Fed. Rep. 903; *Re Shaw*, 172 Fed. Rep. 520. The cases cited by the Government do not sustain its contention.

A subpœna addressed to a corporation merely would be entirely subversive of the right guaranteed by the Constitution and the English Bill of Rights.

The dictum of Judge Lacombe in *United States* v. *American Tobacco Co.*, 146 Fed. Rep. 557, and the decision of the same judge in *In re American Sugar Co.*, 178 Fed. Rep. 109, upholding the validity of a subpœna addressed to a corporation, and not to any officer thereof, are not in accord with the spirit of Federal decisions, the Constitution of the United States, and the rights of an individual guaranteed since the English Bill of Rights.

The Solicitor General, with whom *Mr. Henry E. Colton*, Special Assistant to the Attorney General, was on the brief, for the United States:

The grand jury was engaged in an inquiry which gave it authority to summon witnesses, and to call for the production of books and papers. *Hale* v. *Henkel*, 201 U. S. 43.

The subpœna *duces tecum* was a valid process. *United States* v. *Am. Tobacco Co.*, 146 Fed. Rep. 557; *In re Am. Sugar Co.*, 178 Fed. Rep. 109; *Consolidated Rendering Co.* v. *Vermont*, 207 U. S. 541.

No objection to the subpœna having been made at any prior stage of the proceedings, such objection cannot be made for the first time in this court.

The search and seizure involved in the subpœna *duces tecum* were not unreasonable, since the subpœna was specific as to the person to whom it was directed and what was to be produced thereunder, and it was issued for the lawful purpose of securing material testimony in an